

**Court No. - 37**

**Case :-** WRIT - C No. - 40039 of 2017

**Petitioner :-** M/S Laxmi Oil Mill Thru Proprietor

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Sanjay Singh, Akhilesh Tripathi

**Counsel for Respondent :-** C.S.C., Mahboob Ahmad

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Rajiv Lochan Mehrotra, J.**

Heard learned counsel for the petitioners.

The petitioner is aggrieved on account of the non-availability of final bills and the correct calculation of the consumption charges as the petitioner alleges that the bills are inflated.

The notice Annexure-2 to the writ petition is a demand raised from the petitioners in the shape of a bill. The petitioner therefore is essentially raising a billing dispute which falls within the meaning of Clause 6.5 of the U.P. Electricity Supply Code, 2005 where the Executive Engineer is empowered to examine the same and pass appropriate orders.

We accordingly dispose off this petition with the liberty to the petitioner to approach the Executive Engineer concerned who shall examine the grievance of the petitioner and proceed to pass an appropriate order in the event no final orders of assessment have been passed in accordance with law within six weeks of the date of presentation of a certified copy of this order. The recovery of the amount shall be subject to the outcome of the orders which may be passed by the Executive Engineer.

Writ petition is disposed of with the said directions.

**Order Date :-** 31.8.2017

R./